

Background

*Defendant filed a motion to compel arbitration and stay the action.
Plaintiff, on 12/29/25, filed notice of non-opposition and further requested Stay or Dismissal.*

Disposition

*Defendant's Motion is granted.
Case will be dismissed, upon request of Plaintiff.*

**8. 9:00 AM CASE NUMBER: L25-08939
CASE NAME: CAPITAL ONE, N.A. VS. MICHELLE BEN
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: BEN, MICHELLE Y
*TENTATIVE RULING:***

Background

Defendant filed, on December 8, 2025, a Motion to Set Aside Default, claiming a lack of actual notice under Sections 473(b) and 473.5 of the Code of Civil Procedure.

The Default Judgment was filed November 20, 2025.

Plaintiff filed a timely response.

Analysis

Defendant claims that they were never personally served with the Summons or Complaint, prior to the entry of the default judgment.

Plaintiff filed a Proof of Service, on November 20, 2025, indicating personal service on a Michelle Y. Ben, who confirmed their identity. The service was effected on September 7, 2025, and was completed by a registered process server.

This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Moreover, the service was effected at the same address as listed on the account statement for Defendant, a copy of which was included in Plaintiff's response.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order.

9. 9:00 AM CASE NUMBER: L25-13609
CASE NAME: AFSHIN SHAHIDI VS. ALLIED PLUMBING & FIRE SUPPLY
HEARING IN RE: PETITION FOR RELEASE OF PROPERTY LIEN
FILED BY:
TENTATIVE RULING:

Background

Plaintiff filed, on December 22, 2025, a Petition for the Release of a Property Lien. The hearing was scheduled for January 27, 2026.

The Petition is unopposed; however, there is no proof that Plaintiff has served the Defendant with a copy of the Complaint.

Disposition

Hearing will be continued for 60 days for Plaintiff to serve Defendant.

Plaintiff to file Order.

Courtroom Clerk's Session
Add On

10. 9:00 AM CASE NUMBER: MS25-0971
CASE NAME: POETS PROPERTIES, LLC VS. SHANNON WILSON
***DEMURRER / MOTION TO STRIKE HEARING**
FILED BY:
TENTATIVE RULING:

Background

Defendant filed its Demurrer, on January 2, 2026, to the Complaint of Unlawful Detainer, filed on November 12, 2025. The matter was set for hearing on January 27, 2026.

Defendant alleges that Plaintiff fails to state a cause of action and then contends that Plaintiff has not complied with the "Ellis Act," which appears to have been codified in sections 7060 through 7060.6 of the California Government Code.

It is unclear what the Defendant's particular argument is with respect to these statutes, but